

[doc. web n. 9987578]
Provision of January 24, 2024
Register of Provisions
No. 35 of January 24, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers delegated to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the
Secretary General pursuant to Article 15 of the Guarantor
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING by Dr. Agostino Ghiglia;

PREAMBLE

1. Introduction.

The Authority received a complaint from Ms. XX,
a teacher at the State Comprehensive Institute
"F.S. Cabrini" (hereinafter, "Institute"), regarding the publication,
on the institutional website of the aforementioned Institute, of dozens of managerial determinations
(about thirty-seven) concerning organizational aspects related to the continuity of teaching activities

and the management of the employment relationship with the complainant, with particular reference to the days of absence from service by the complainant and other school staff and the need to provide for their replacement during the 2021/2022 school year.

2. The investigative activity.

In response to a request for information made by the Authority, the Institute, by note dated XX (prot. n. XX of XX), through its school principal, represented, in particular, that:

- the Institute “proceeds in certain cases to replace teaching staff through the granting of short-term substitutes from the first day of absence. Such grants must be evaluated on a case-by-case basis, taking into account the weekly schedules of absent staff, the obligation to ensure minors' right to education and the continuity of the educational action, the necessity to ensure the safety and security of students, and the indispensable assistance to students with special educational needs; substitutes are assigned by scrolling through the institute's rankings of first/second/third tier (also using availability declarations)”;
- “Each assignment defines the initiation, through appropriate managerial determination, of an administrative procedure that the undersigned is required to formalize pursuant to Law 241/90 and whose concluding act must rely on publication in the online register for the legal effectiveness of the procedure itself, pursuant to the aforementioned legislation (so-called “integrative phase of the effectiveness of the administrative procedure”). Such determinations must be adequately motivated and are precisely those cited by you in the complaint in question”;
- “The publication of the determinations must be carried out online as required by Article 32, paragraph 1 of Law No. 69 of June 18, 2009, which established that “as of January 1, 2010, the obligations of publication of acts and administrative provisions for legal publicity are considered fulfilled with publication on their own websites by the administrations and public entities required”;
- “in compliance with the principle of accountability referred to in Article 5, paragraph 2 of the European Regulation 679/2016 [...the minimum necessary data have been evaluated] to be included in the determinations subject to the complaint, which [the same Institute] is required to publish in the online register (and not in Transparent Administration or in other areas of the site) pursuant to the above-mentioned norms”;
- “Following this analysis [the Institute] deemed it appropriate to omit any excessive and irrelevant data for the purposes of publication, particularly excluding from the acts the reasons for absence and other information from which it is possible to infer special categories of data of the interested party (e.g., union permits or health data); this also in full compliance with

the Guarantor's provision No. 290 of September 1, 2022, doc. web. 9811361”;

- “All the acts you cited are no longer published.”

documentazione necessaria per la registrazione delle operazioni di trattamento effettuate”;

- “In merito alla gestione delle assenze del personale, si precisa che l’istituto ha adottato un sistema di monitoraggio delle assenze che consente di registrare e gestire in modo efficiente le sostituzioni e le supplenze. Tale sistema è stato implementato per garantire la continuità didattica e per rispondere tempestivamente alle esigenze dell’utenza scolastica. Le comunicazioni relative alle assenze vengono effettuate tramite canali ufficiali e sono gestite in conformità con le normative vigenti in materia di protezione dei dati personali”;

- “Infine, si sottolinea che l’istituto ha sempre operato con la massima attenzione alla protezione dei dati personali, adottando misure tecniche e organizzative adeguate per garantire la sicurezza e la riservatezza delle informazioni trattate. Si è provveduto a formare il personale e a sensibilizzarlo sull’importanza della protezione dei dati, affinché ogni operazione venga effettuata nel rispetto della normativa vigente”;

Concludendo, l’Istituto ha chiesto che venga presa in considerazione la propria memoria difensiva e che si valuti l’assenza di dolo o colpa grave nella gestione dei dati personali, auspicando una chiusura favorevole del procedimento in corso.

"receipt of acknowledgment";

- the Institute has nonetheless adopted "a conduct aimed at maximum cooperation with the Guarantor to remedy the violation and mitigate its possible negative effects. In this regard, immediately following the first request for information received from your esteemed Authority, [the Institute] deemed it prudent to: a) remove the publications subject to the complaint (removal carried out on XX); b) modify the format for the determinations to be published for the replacement of absent personnel, in order to avoid any reference to names and days of absence (modification made starting from XX)[...]. Furthermore, the instructions given to the ATA personnel, described in letter (d), will be supplemented to ensure that timely communication of the data that can be published according to the specific type of provision will be provided."

With the same note, the Institute submitted a copy of the aforementioned format, in use since XX, for the acts to be published in the context of the initiation of procedures for the replacement of personnel pursuant to the sector regulations.

3. Outcome of the investigative activity.

3.1. The regulations on personal data protection.

According to the personal data protection regulations contained in the Regulation and the Code, public entities, even within the workplace context, may process personal data of the interested parties, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller" (Article 6, paragraphs 1, letters c) and e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Articles 2-ter and 2-sexies of the Code, in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

European regulations provide that "Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures aimed at ensuring lawful and fair processing [...]" (Article 6, paragraph 2, of the Regulation).

In this regard, it is highlighted that the operation of disseminating personal data (such as publication on the Internet) by public entities is permitted only when provided for by a legal norm or, in cases provided

for by law, by regulation (cf. Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

The data controller is then, in any case, required to comply with the principles regarding data protection, among which are "lawfulness, fairness, and transparency" as well as "minimization," according to which personal data must be "processed lawfully, fairly, and transparently in relation to the data subject" and must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (Article 5, paragraph 1, letters a) and c) of the Regulation).

3.2. The online dissemination of personal data.

From the elements acquired and the facts emerged during the investigative activity and subsequent evaluations regarding the matter subject to complaint, it appears that the Institute published on its institutional website approximately thirty-seven managerial determinations containing information related to the replacement and days of absence from service carried out, during the school year 2021/2022, by the complainant and other school personnel. The matter originated within the use of the integrated IT platform (functional to a plurality of "operational areas, such as 'protocol,' 'teaching,' 'personnel,' 'accounting/budget,' 'online register,' and 'transparent administration' [... each of which] is reserved for the sole personnel pertaining to the relevant office"; cf. note of XX). During the investigation, the Institute confirmed that this publication continued until XX, the date on which the Institute, actively cooperating with the Authority and in order to remedy the violation that had occurred, removed the documents published online.

In this regard, it is noted that, as clarified by the Guarantor with the "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for purposes of publicity and transparency on the web by public entities and other obligated entities" of May 15, 2014 (doc. web. 3134436) as well as on occasions of decisions on individual cases, the publication on the institutional website of personal data, in the absence of an appropriate legal basis, results in unlawful dissemination of data (cf. Articles 5, 6, and 9 of the Regulation and Articles 2-ter and 2-sexies of the Code). This has been, in particular, reiterated in numerous decisions of the Guarantor also with reference to the online publication of acts or documents containing personal data related to days and reasons for absence from service, specifically by educational institutions (cf., in particular, Provision of September 1, 2022, No. 290, doc. web No. 9811361 and previous provisions referenced therein). Considering that the Institute has not provided indications regarding the existence of specific regulations establishing the publication of the determinations.

****Subject: Appeal regarding short and occasional replacements for the substitution of absent personnel****

The generic reference to the transparency obligations set forth in Article 32, paragraph 1, of Law No. 69 of June 18, 2009 (which, in any case, does not impose the publication of acts containing information regarding the absence from service of personnel) cannot be deemed sufficient to justify the conduct exhibited in this case. The following is represented.

As traditionally reiterated by the Authority in relation to similar cases, the existence of a publicity regime for acts and documents does not imply any automaticity regarding the online dissemination of the personal data and information contained therein, nor does it provide an exemption from the principles concerning the protection of personal data (see, among many, the recent provision of September 14, 2023, No. 398, web document No. 9940457, and the measures referenced therein).

In numerous decisions, the Authority has indeed reaffirmed that all limits established by the principles of data protection regarding the lawfulness and minimization of data also apply to publications in the online register (see Part II, paragraph 3.a. of the "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for publicity and transparency purposes on the web by public entities and other obligated entities," cited).

This is further confirmed by the personal data protection system contained in the Regulation, under which it is provided that the data controller must implement "appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of processing are processed" and must be "able to demonstrate" – in light of the principle of

"accountability" – that this has been done (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation).

In the resolution subject to publication, no personal data of the complainant or other personnel should have been included, resorting, if necessary, to the technique of "omissis" or other data anonymization measures (see, specifically regarding a similar case in the school context, provision of September 1, 2022, No. 290, web document 9811361, and previous measures referenced therein).

In light of the above considerations, although the occurrence appears to have happened due to mere error and in the presence of numerous organizational difficulties during the emergency period due to the Covid-19 epidemic, it must be concluded that the online publication on the institutional website of information regarding the absence from service of the complainant and other employees has resulted in the dissemination of personal data in the absence of an adequate lawful basis, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code.

Nonetheless, the adoption by the Institute of organizational measures aimed at preventing similar errors in the future, particularly through further training activities directed at administrative personnel and the adoption of updated formats to be used during publication on the website, is positively noted.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – while deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, as none of the cases provided for by Article 11 of the Authority's Regulation No. 1/2019 apply.

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Institute is noted, in violation of Articles 5, paragraph 1, letter a), and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter, paragraphs 1 and 3 of the Code.

The violation of the aforementioned provisions makes the administrative sanction provided for in Article 83, paragraph 5, of the Regulation applicable to the Institute, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referenced by Article 166, paragraph 2, of the Code.

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the College [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Authority's Regulation No. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each...

****Single Case****

The amount must be determined taking into account the elements provided for in Article 83, paragraph

2, of the Regulation. With specific regard to the nature and severity of the violation and the sensitivity of the data affected by the violation (Article 83, paragraph 2, letters a) and g), of the Regulation), the following observations are made.

It is noted that in the workplace context, the data subjects are in a condition of particular "vulnerability" and that, therefore, the risks to the rights and freedoms of the data subjects assume particularly high coefficients of probability and severity in this context (see Recital 75 and Article 88 of the Regulation and the "Guidelines on the assessment of impact on data protection and the criteria for determining whether a processing 'may present a high risk' under Regulation 2016/679", WP 248 of April 4, 2017, which explicitly mentions "employees" among the categories of vulnerable data subjects). It must be considered that the violation in question involved the dissemination by the Institute, in the absence of a legal basis, of personal data concerning the absences made by the complainant on certain days of the school year, even though this occurred without indicating the specific reasons or references to information relating to special categories of data.

Regarding the duration of the violation (Article 83, paragraph 2, letter a), of the Regulation), it is important to highlight that it appears to have lasted for an extended period, until the XX, the date on which the Institute nevertheless removed the documents published online to remedy the violation that had occurred.

In light of these circumstances, it is believed that, in this specific case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it should be noted that, for the purposes of Article 83, paragraph 2, letter e), of the Regulation, there are no relevant previous violations committed by the data controller or previous measures referred to in Article 58 of the Regulation.

It should also be considered that the Institute cooperated with the Authority during the investigation, promptly removing from its website the personal data contained in acts and documents and adopting new procedures and organizational measures aimed at preventing similar errors in the publication phase from occurring in the future (Article 83, paragraph 2, letter f), of the Regulation).

Furthermore, it is taken into account that the violation occurred in a context, such as the school environment, characterized by numerous organizational difficulties as well as additional problems related to the emergency period due to the spread of the Covid-19 virus (Article 83, paragraph 2, letter k) of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €2,000 (two thousand) for the violation of Articles 5, paragraph 1, letter a), and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter, paragraphs 1 and 3 of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to the complaint) as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that the accessory sanction of publication on the website of the Authority of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by the Institute for violation of Articles 5, paragraph 1, letter a), and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter, paragraphs 1 and 3 of the Code, in the text prior to the amendments made by Legislative Decree No. 139 of October 8, 2021, in force at the time of the facts subject to the complaint, in the terms stated in the reasoning;

****ORDERS****

the State Comprehensive Institute "F.S. Cabrini", represented by the legal representative pro tempore, with registered office at Via delle Forze Armate, 65 - 20147 Milan, Tax Code 97666910159, to pay the

sum of €2,000 (two thousand) as an administrative monetary sanction for the violations indicated in the reasoning.

It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****COMMANDS****

the aforementioned Institute, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €2,000 (two thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the website of the Authority, considering that the conditions referred to in Article 17 of the Regulation of the Authority No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 24, 2024

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Ghiglia

****THE SECRETARY GENERAL****

Mattei